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MOTIONS TO COMPEL

The Court

tenders the following tentative decision in the matter Alexander Mota v. Mitchell Castillo, et al., Los Angeles County Superior Court case number 24STCV28302, set for hearing on July 22, 2026. Athena Parking, Inc. (Defendant) moves for various orders regarding the following discovery requests propounded on Alexander Mota (Plaintiff): (1) form interrogatories, set one (FROGs); (2) requests for production of documents, set one (RFPs); (3) special interrogatories, set one (SPROG1s); (4) special interrogatories, set two (SPROG2s); and (5) requests for admissions, set one (RFAs). Defendant also requests a total \$1,211.50 in monetary sanctions. Plaintiff did not file a timely opposition to the present motions. Defendant's motions to compel discovery are granted. The Court awards \$550 in sanctions.

A.

Legal Standard

A party may move for an order compelling further responses to a request for production of documents if the propounding party deems that responses are incomplete, evasive, or contain meritless objections. (Code Civ. Proc., § 2031.310, subd. (a).) A motion to compel further responses to requests for production "shall set forth specific facts showing good cause justifying the discovery sought by the inspection demand." (Id., § 2031.310, subd. (b)(1).) A party may also move for an order compelling further responses to interrogatories if the propounding party deems that responses are incomplete, evasive, contain meritless objections, or improperly exercise the option to produce documents under section 2030.230. (Id., § 2030.300, subd. (a).) And a party may move for an order compelling

further responses to requests for admissions if it shows that an answer is evasive or incomplete or an objection is meritless. (Id., § 2033.290, subd. (a).)

“For discovery purposes, information is relevant if it ‘might reasonably assist a party in evaluating the case, preparing for trial, or facilitating settlement.’

[Citation]. Admissibility is not the test and information, unless privileged, is discoverable if it might reasonably lead to admissible evidence.

[Citation] These rules are applied liberally in favor of discovery.” (Gonzales v. Superior Court (1995) 33 Cal.App.4th 1539, 1546.) “If the court determines that the answer or production sought is subject to discovery, it shall order that the answer be given, or the production be made on the resumption of the deposition.” (Code Civ. Proc., § 2025.480, subd. (i).)

B. Discussion

As a threshold matter, the Court must determine the relief sought by Defendant with respect to each motion given the inconsistency and ambiguity of the notices of motion provided to the Court. Based on the content of the motions and their accompanying declarations, the Court finds that Defendant has moved to compel further responses to FROGs, SPROG1s, and RFAs, and has moved to compel initial responses to RFPs and SPROG2s. None of the motions were timely opposed. Two days prior to the hearing Plaintiff states that he served responses to the discovery. The Court will address Defendant’s motions to compel initial responses before turning to its motions to compel further responses.

Defendant’s motions to compel initial responses are granted.

If a party to whom interrogatories are directed fails to serve a timely response, that party waives any objection, the party making the demand may move for an order compelling response, and the Court shall impose a monetary sanction against any party who unsuccessfully opposes such a motion unless they acted with substantial justification. (Id., § 2030.290.) If a party to whom an inspection demand is directed fails to serve a timely response, that party waives any objection, the party making the demand may move for an order compelling response, and the Court shall impose a monetary sanction against any party who unsuccessfully opposes such a motion

unless they acted with substantial justification. (Id., § 2031.300.)

Defendant propounded the RFPs and SPROG2s on April 24, 2026. (Domeyer Decl. RFPs ¶ 4; Domeyer Decl. SPROG2s ¶ 3.) Plaintiff had not served any responses by the filing of this motion on June 16, 2026, and the parties had not agreed to an extension. (Domeyer Decl. RFPs ¶ 6; Domeyer Decl. SPROG2s ¶ 5.) Because of Plaintiff's failure to respond to the relevant discovery requests within the allotted timeframe, Defendant's motions to compel RFPs and SPROG2s pursuant to Code of Civil Procedure sections 2030.290 and 2031.300 are proper. Plaintiff does not offer any timely opposition to the motions. Accordingly, Defendant's motions to compel initial responses are granted: (1) Plaintiff is ordered to produce responses to Defendant's RFPs and SPROG2s within 30 days.

Defendant's motions to compel further responses are granted.

Defendant seeks further responses to SPROGs 24 and 25, FROG 2.6, and RFA 15. SPROGs 24 and 25 ask Plaintiff to describe prior criminal activity near the relevant parking lot and Defendant's alleged notice thereof. Plaintiff responded with the statements that there were numerous reports of criminal activity to LAPD and that Defendant's employees were aware of criminal activity in the area. Defendant argues that Plaintiff's responses are evasive because the relevant interrogatories required Plaintiff to describe all relevant facts. The Court agrees. Plaintiff fails to identify the specific facts underlying the conclusions he provides as answers to the interrogatories. Thus, further responses to SPROGs 24 and 25 are warranted. FROG 2.6 asks Plaintiff to identify his current and previous employers and provide their address and telephone number. Plaintiff's response only included the name of one employer. This response is incomplete because it does not provide contact information. Thus, a further response is warranted. RFA 15 asks Plaintiff to admit that "Ricardo Mota suffered from Atherosclerotic Cardiovascular Disease prior to his passing." Plaintiff did not respond to this RFA. Thus, a further response is required. Accordingly, Defendant's motions to compel further responses are granted.

Sanctions are warranted.

Defendant requests sanctions in the notice of its motion to compel further responses to RFAs only. Sanctions may be

awarded where a party unsuccessfully opposes a motion to compel further responses to RFAs, provided that the party does so without substantial justification. (Code Civ. Proc., § 2033.290.) Such sanctions are warranted even when no opposition brief is filed. (Rules of Court, rule 3.1348.) Here, Plaintiff opposed Defendant's motion without substantial justification, as he provided no timely brief in opposition. Thus, sanctions are warranted pursuant to section 2033.290, subdivision (d). Counsel testifies to an hourly rate of \$245, which the Court credits. (Domeyer Decl. ¶ 7.) Counsel further testifies that it took him 3.2 hours to review discovery and draft the present motion and would take a further 1.5 hours to review the opposition, draft a reply, and attend the hearing on this matter. (Ibid.) Additionally, counsel notes the existence of a \$60 filing fee for the present motion. (Ibid.) Because of the simplicity and boilerplate nature of the present motion and its coverage of only a single RFA, the Court only credits counsel with 1 hour for drafting the motion and 1 hour for attending the hearing on this matter, since no opposition was filed. Accordingly, the Court awards Defendant sanctions in the amount of \$550 ($[\$245 \text{ per hour}] \times [2 \text{ hours}] + [\$60 \text{ filing fee}] = \550).

C. Conclusion

The Court grants Defendant's motions. Defendant is awarded \$550 in sanctions, payable by Plaintiff's counsel to Defendant's counsel within 30 days.